

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW,
AVERS LOGISTICS LTD,
CJ DELUZ NIGERIA LTD.

Complainants,

vs.

ALLA SOLOVYEVA,
RAYA BAKHIREV.

Respondents.

RESPONDENTS'
RESPONSE TO PROPOSED
FINDINGS OF FACT

1. Admit.
2. Admit.
3. Admit.
4. Admit.
5. Admit.
6. Admit.
7. Admit.
8. Admit.
9. Admit.
10. Admit.
11. Admit.
12. The Verified Answer, ¶21 is incorporated in this response.
13. The Verified Answer, ¶28 is incorporated in this response.
14. Admit.

15. Admit.
16. It is not possible to respond to this statement as it seeks to generalize an unknown number of transactions. It is true that many transactions involve transportation via the ocean. Other transaction involve inland transportation that do not materialize into ocean transportation.
17. Admit.
18. The Verified Answer, ¶33 is incorporated in this response.
19. Admit.
20. The Verified Answer, ¶49 is incorporated in this response. The Court is respectfully referred to the part of this proposed fact where Mr. Nussbaum omits (where such omission is not present in his complaint) any mention of co-Respondent's Raya Bakhirev, yet Complainants have refused to dismiss Ms. Bakhirev from this case.
21. The Verified Answer, ¶54 is incorporated in this response. The Court is respectfully referred to the part of this proposed fact where Mr. Nussbaum omits (where such omission is not present in his complaint) any mention of co-Respondent's Raya Bakhirev, yet Complainants have refused to dismiss Ms. Bakhirev from this case.
22. Admit; however, Mr. Nussbaum omits the balance of the conversation and such is misleading to the Court, which reads: "Please also take into consideration that you have unpaid Warehouse storage fees for these vehicles. Open Invoices attached. Kindly remit payment at your earliest convenience. "(CX0101). When Mr. Nussbaum submits to this Court a proposed finding of fact and premises such with an email "which reads as follows", it creates the impression that whatever follows is a complete conversation; however, as illustrated above, the complete conversation reveals something different.

23. Here again, Mr. Nussbaum takes upon himself to determine what is relevant and provides a part of the conversation. Only the Court can determine what is relevant; therefore, the entire conversation must be provided to enable the Court to make such a determination. The entire email, which Mr. Nussbaum did not provide, appears in Docket Entry #25, Exhibit #5.
24. As stated above, Mr. Nussbaum has an obligation to present all of the information to the Court, not just edits that he deems relevant.
25. See response to #24 above.
26. The referenced document speaks for itself.
27. The referenced document speaks for itself.
28. Mr. Nussbaum, once again, misleads the Court by taking a sample from an email out of complete context. (CX0019).
29. See response to #24 above.
30. Denied. The second line of Respondent's Exhibit #4 (also RX0202), states: "82153-UF". "UF" stands for uncollectible funds. This is a manner of accounting to account for uncollectible funds, as of October of 2018 it was \$64,520.80. This is why on page 20 of Respondent's Exhibit #3, the above amount appears with a minus sign in front of it: "-64,520.80". Also see Respondent's Exhibit #2 at page 2.
31. Denied. The dates of receipt are listed on the payment receipts and contain itemization. Additionally, for example, see #11 of MTL's Answers to Request for Admissions. (Complainant's Appendix "B").
32. None of the cited vehicles match any of the 17 vehicles that are subject of this case. The Court previously ruled that only the 17 subject vehicles (found in Exhibit "A" of the

Complaint), are the relevant vehicles and found: “Complainants have not demonstrated that Respondents should be compelled to produce documents other than those related to the 17 vehicles listed in the complaint.” (Docket Entry #21, page 5).

33. Same response as in #32 above.

34. Denied as to the “total sum was withdrawn.” It appears that two wires came in: \$1,000 and \$6,350, and the amounts that were applied to the two invoices totaled \$3,014.20.

35. The amount listed is not “\$1,000.50” but \$1,100.50.

36. Admit.

37. Admit.

38. Admit. However, this payment receipt does not involve any of the 17 subject vehicles and reflect payments made by Complainants for other vehicles. Obviously, Complainants have no issues with the non-subject vehicles as they paid MTL for services in relation to such.

39. This document, which speaks for itself, is completely irrelevant because the cited invoices have nothing to do with the 17 subject vehicles found in Exhibit “A” of the Complaint.

40. Denied. Firstly, as stated above in #38, this Payment Receipt involves payment on invoices for vehicles that have nothing to do with the 17 subject vehicles. In any case, this proposed finding of fact says that the payment receipt of February 16, 2017 “fails to reflect the balanced remaining in the sum of \$565.” This is not true – looking at the bottom of RX0206 (See also Respondent’s Exhibit #3, page 1), the amount listed is \$3,420 — when subtracting \$3,420 from the amount of the incoming wire of \$3,985, it yields a balance of \$565.

41. The referenced invoice is for a vehicle that has nothing to do with this case and is not one of the 17 subject vehicles. There is no basis for the assertion that the uncharged sum of \$1,065.00 should have been returned. The practice was that the Complainant, Mr. Chinedu, provided instructions as to how to allocate the funds. (See for example RX0039).
42. The referenced invoice is for a vehicle that has nothing to do with this case and is not one of the 17 subject vehicles.
43. Admit.
44. Denied. The cited document contains a different amount of \$7,000. This document has not been authenticated in any way. It contains as the beneficiary both MTL and Avers Logistics.
45. Admit.
46. Admit.
47. This appears to be correct.
48. The referenced payment pertains to vehicles that have nothing to do with this case – they are not part of any of the 17 subject vehicles.
49. The referenced invoice is for a vehicle that has nothing to do with this case and is not one of the 17 subject vehicles. There is no basis for the assertion that the uncharged sum of \$1,710.00 should have been returned. The practice was that the Complainant, Mr. Chinedu, provided instructions as to how to allocate the funds. (See for example RX0039).
50. See response to #48 above.
51. Admit.

52. Admit.

53. The practice was that the Complainant, Mr. Chinedu, provided instructions as to how to allocate the funds. (See for example RX0039).

54. The vehicles listed in the referenced payment receipt have nothing to do with this case as they are not part of the 17 subject vehicles. All this shows is that whenever the Complainants paid for MTL's services, there was never any issue with their vehicles.

55. See response to #54 above.

56. There is no basis for the assertion that the uncharged sum of \$4,449.30 should have been returned. The practice was that the Complainant, Mr. Chinedu, provided instructions as to how to allocate the funds. (See for example RX0039). Additionally, as Respondent's Exhibit #1 shows, there were may outstanding charges.

57. The vehicle that is the subject of the referenced payment receipt has nothing to do with this case as it is not part of the 17 subject vehicles. All this shows is that whenever the Complainants paid for MTL's services, there was never any issue with their vehicles.
See response to #56 above.

58. Admit.

59. A different amount (6,500) is listed on Complainant's document, which has not been authenticated.

60. These are not shipping instructions. The practice was that the Complainant, Mr. Chinedu, provided instructions as to how to allocate the funds. (See for example RX0039).

61. This appears to be correct.

62. This appears to be correct.

63. The cited invoice #s ending in 416, 417, and 418, are for vehicles that are not part of the 17 subject vehicles, and are, therefore, irrelevant. The cited documents do not establish the order in which the shipping documents were provided. In any case, it is noteworthy that Complainants made payment after the due date on the invoice. For example, the above-referenced Invoice #69416 (Respondent's Exhibit #2, page 68) set the due date of June 1, 2017, yet Complainants made payment for such on June 15, 2017 (Respondent's Exhibit #3, page 14), so it is not clear what Mr. Nussbaum seeks to establish with this proposed finding of fact.
64. Admit.
65. Admit.
66. A different amount is listed on the cited document. Furthermore, the phrase "UP KEEP" is not an instruction, and no foundation has been provided as to what this phrase means or what was agreed upon.
67. Admit.
68. The referenced payment receipt lists vehicles that have nothing to do with this case as it is not one of the 17 subject vehicles. See response to #57 above.
69. See response to #68 above. It is important to note that with every single invoice that is listed on the cited payment receipt, Complainants were late in submitting payment. For example, one of the cited invoices is #70167, and looking at this invoice (Respondent's Exhibit #2, page 62), the due date was June 27, 2017; however, the payment receipt notes that Complainants made payment on August 16, 2017 – almost two months late. It is further noted that irrespective of Complainants' chronic lateness with payments, MTL continued to provide services.

70. Denied. It is noteworthy that Mr. Nussbaum does not cite to any document in support of this proposed fact.
71. Admit; however, the referenced vehicles are not part of the 17 subject vehicles. It is not clear why Mr. Nussbaum brings up the fact that whenever the Complainants paid for storage, the vehicles were released to them, which is why the cited vehicles are non-subject vehicles.
72. The due date on Invoice #70678 is listed as July 17, 2017 (Respondent's Exhibit #2, page 57); however, payment was made — based on Complainants' own admission via their proposed finding of fact — on August 16, 2017: a month after the due date.
73. Admit. The entire answer provided by the answer to the request for admission is incorporated.
74. Denied. The vehicle that is the subject of this invoice is not one of the 17 subject vehicles. In any event, as noted above with many, if not all, other invoices, Complainants were grossly late in their payment obligations. The referenced Invoice #71588 had a due date of August 16, 201 (Respondent's Exhibit #2, page 52); however, payment was made —based on Complainants' own admission via their proposed finding of fact — on September 15, 2017: a month after the due date.
75. This appears to be accurate.
76. Denied. See response to #74 above. Complainants told MTL when and how to allocate the payments.
77. Admit.
78. The cited invoices pertain to vehicles that have nothing to do with this case as they are not part of the 17 subject vehicles.

79. See response to #56 above.
80. This appears to be correct.
81. Admit.
82. Admit; however, the referenced payment is for a vehicle that has nothing to do with this case as it is not one of the 17 subject vehicles.
83. Admit.
84. Admit; however, the referenced payment is for vehicles that have nothing to do with this case as it is not one of the 17 subject vehicles. See also Respondent's Exhibit #2, pages 27-28 (Invoices #s 74770 & 74771), which lists Vin numbers for vehicles that were not any of the subject vehicles. There is no basis to say that any balance should have been returned when there was enormous outstanding balance (Respondent's Exhibit #1) and there were other shipments scheduled.
85. This appears to be accurate.
86. See response to #84 above.
87. See response to #84 above. This allocation involves a vehicle that is not part of any of the 17 subject vehicles.
88. This appears to be accurate but irrelevant. See response to #84 above.
89. Admit.
90. See response to #87 above.
91. This appears to be accurate.
92. The referenced invoices have nothing to do with this case as they pertain to Vin #s that correspond to vehicles that are not part of the 17 subject vehicles. It is submitted that the only thing that this proposed finding of fact demonstrates is that when Complainants

made payment for MTL's services — albeit late — there were no issues with their vehicles.

93. See response to #92 above.

94. Admit.

95. This appears to be accurate.

96. This appears to be accurate.

97. Admit and the following is noteworthy: as to Invoice #71472 (Respondent's Exhibit #2, page 53), the due date of the invoice was August 14, 2017, and by Complainant's own admission in this proposed finding of fact, payment was made on March 8, 2018, which is seven months after the due date. It is further being submitted that this is the perfect example that contradicts the Complainants' theory that MTL applied payments in contravention of the instructions. If MTL wanted to apply payments as they saw fit, then they would not have waited around 7 months to apply such a payment. This proposition is also corroborated by, for example, Complainants' Exhibit "B", ¶17, which states that Complainants provided instructions on how to allocate incoming wires.

98. Admit.

99. This receipt that Mr. Nussbaum attaches was not provided by Respondents; therefore, as no foundation has been laid for such, an accurate response cannot be given.

100. Denied. See RX0023, ¶20.

101. Admit.

102. Admit.

103. This appears to be accurate.

104. Denied. The referenced invoice is #83489, which has the due date of June 8, 2018, and by Complainants' own admission via this proposed finding of fact, MTL issued a payment receipt, meaning the funds were applied to this invoice, on June 21, 2018 — two weeks late. This response is similar to response to #97 above.
105. See response to #104 above.
106. No such notation appears on the referenced document. In any case, the vehicles that are listed on this document are not part of the 17 subject vehicles.
107. See response to #106 above.
108. This cannot be confirmed.
109. This appears to be correct.
110. Once again Mr. Nussbaum misleads the court by stating that "Respondents have admitted that the chain of emails..." What was admitted in ¶26 in their Exhibit "B" is that "the email annexed..." If an entire chain should be considered, then the Court is respectfully directed to Docket Entry #25, Exhibits 4 to 6.
111. The email speaks for itself.
112. Admit.
113. Denied. The full conversation is not reproduced here.
114. Denied. Firstly, all of the vehicles that are part of this document are not any of the 17 subject vehicles. In any case, Ms. Bakhirev explained the accounting aspect of showing zero on the bottom right corner of the payment receipt: "The 0.00 reflects the fact that all of the money that were received by MTL during a particular period has been fully applied to the listed invoices." See page 339 of Complainants' appendix, at ¶73.
115. Denied. See response to #114 above.

116. Denied. See response to #114 above.
117. Denied. See response to #114 above.
118. Admit.
119. Denied. This email does not contain any instructions; it simply but contains Vin numbers. Perhaps it could be argued that simply including the phrase “roro cars” implied shipment via roro.
120. This is yet another example of Mr. Nussbaum picking out statements out of an email to distort the content, which is clearly intended to mislead the Court. Mr. Nussbaum starts his proposed finding of fact with “...You agree to pay...” Firstly, the three periods encompass a very important statement that Mr. Nussbaum omits: “These vehicles were in the facility since January 2017.” Mr. Nussbaum then, instead of correctly quoting the word “agreed” in the past tense, he simply changes such to the present tense to create the impression that Mr. Chinedu now agrees, as of the date of the email, November 3, 2017, but when the entire email is read, a different picture emerges: that Mr. Chinedu was notified of the fact that the vehicles were in storage for at least 7 months, and that he previously agreed to pay for such storage.
121. I would again respectfully ask the Court to read the entire emails and not rely on Mr. Nussbaum’s edits.
122. See response to #121 above.
123. See response to #121 above.
124. See response to #121 above.
125. See response to #121 above.
126. See pages 307 to 308 of Complainants’ appendix.

127. Admit.
128. Admit.
129. Admit.
130. Admit.
131. Admit.
132. Admit.
133. Admit.
134. Admit.
135. Respondents cannot adequately respond as no foundation has been laid for this document.
136. Admit. This invoice only pertained to the inland freight. However, the storage charges reflected in Invoice #82153 (Respondent's Exhibit #2, page 6) for \$4,320 were not paid.
137. The document speaks for itself.
138. Admit.
139. Admit.
140. Admit that the inland freight was paid; however, the storage fee of \$3,650 that appears on Invoice #82087 (Respondent's Exhibit #2, page 16) was not paid.
141. Admit.
142. Admit.
143. Upon information and belief, that is correct.
144. That is correct, the inland freight was paid; however, the storage fees for the amount of \$4,310 (Respondent's Exhibit #2, page 12), was not paid.

145. Admit.
146. The Court is respectfully asked to look at the entire email that is referenced, and not just Mr. Nussbaum's picked out statements. For example, Mr. Nussbaum does not quote to this Court the part of the referenced conversation where Alla Solovyeva says: "Now vehicles were stored for another 9 month."
147. Same comment as in #146 above.
148. Same comment as in #146 above.
149. Same comment as in #146 above.
150. Same comment as in #146 above.
151. Same comment as in #146 above.
152. Respondents adopt ¶22 of their Verified Answer.
153. Respondents adopt ¶22 of their Verified Answer.
154. Admit.
155. Admit, and the document speaks for itself.
156. The entire Bill of Lading should be considered and such document speaks for itself.
157. Denied. Page 352, ¶54, of Complainants' Appendix is incorporated here, which says: "the response to Interrogatory #11d is incorporated here as such was ratified by Complainants. Additionally, the Complainant, Mr. Chinedu, was listed as the consignee on MTL's Bill of Lading (HBOL41677), yet he refused to pick up the vehicle; see response to Interrogatory #4."
158. See response to #157 above.
159. See response to #157 above.

160. See response to #157 above.
161. See response to #157 above.
162. Admit. However, the “cutting and dismantling” does not mean what Mr. Nussbaum would have this Court believe. For example, one of the subject cars that is the subject of the referenced invoice has a Vin# ending in 9422. (Respondent’s Exhibit #2, page 4). The photograph of this vehicle appears in Respondent’s Exhibit #6, page 50, which shows parts dangling from this salvage vehicle, so these parts must be cut or positioned in a secure manner — it does not mean that the entire vehicle is cut and dismantled. Similarly, the subject salvage vehicle with a Vin# ending in 3906 appears on page 55 of Respondent’s Exhibit #6: it has a loose front bumper, so it must be cut before it can be loaded.
163. Denied. Complainants understood that in the conditions that their junk cars appeared, they could not have been loaded onto any vessel. See response to #162 above.
164. Admit that Complainants did not use the words “cut and dismantle”, but their course of conduct, and given the fact that they knew the conditions of their junk vehicles, they understood that loose parts, such as wires and hanging bumpers had to be cut. See response to #62 above.
165. See response to #162 above.
166. Denied. See ¶66, pages 152-153 of Complainants’ appendix.
167. Denied. See ¶67, page 154 of Complainants’ appendix.
168. Denied. There is clear evidence that the container was properly released to the Complainants. See, for example, Respondent’s Exhibit #7, which is MTL’s Bill of

Lading, naming the Complainant, Mr. Chinedu, as the consignee. (Page 125 of Complainants' appendix)

169. See response to #168 above.

170. See response to #168 above.

171. See response to #168 above.

172. Admit.

173. Denied. Mr. Nussbaum states that Mr. Zenkovich "reported directly to respondents Alla Solovyeva and Aleksandr Solovyev." Mr. Solovyev is not a respondent. Upon information and belief, the source of such information being Alla Solovyeva, Mr. Zenkovich was not the manager, is not fluent in English, therefore, he could not have drafted the proposed affidavit in the manner that such is written, especially since this affidavit is not accompanied by a certificate of translation. In any event, this so-called affidavit is easily refuted by the documentary evidence as will be seen below. It is also noteworthy why this statement made under oath does not describe for the Court the circumstances under which Mr. Zenkovich left MTL.

174. See response to #173 above.

175. Denied. Alla Solovyeva personally advised Complainants as follows on December 15, 2017: "The customer is responsible for the physical condition of the vehicle he purchased. When the customer is requesting the ro-ro service he needs to notify if the vehicle is running or not, and what visual damages of the body." (Respondent's Exhibit #5, page 53). Furthermore, Complainants were savvy businesspeople who did not rely on MTL as the Complainant, Mr. Chinedu, himself admitted on April 19, 2017: "Yes I know your company is a freight forwarding agent and

I also understand the business because I am a professional clearing agent too.. And that I know who and who not to deal with.” (Respondent’s Exhibit #15). Furthermore, there is no basis to say that “if said automobiles had issues preventing them from being exported by RoRo (for example, missing keys, etc) then MTL was under a duty to refuse to accept delivery of the automobiles.” This does not prevent the vehicle from being exported, as, for example, there is a forklift service that the Complainants were offered but refused. (Respondent’s Exhibit #5, page 11). See also response to #180 below.

176. See response to #173-175 above.

177. See response to #173-176 above, and #178 below.

178. Denied. Complainants were fully aware of the condition of their own salvage vehicles. See response to #162 above. The Court is respectfully referred to view the photos of the subject vehicles that Complainants have purchased at Respondent’s Exhibit#6.

179. Denied. As demonstrated above, Complainants were consistently late in paying for services. See, for example, response to #104 above.

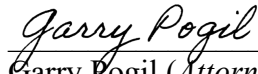
180. Denied. For example, in October 2017, Complainant, Mr. Chinedu, explicitly rejected the forklift service with respect to one of the subject vehicles (Vin# ending in 2942) which would enable to load a non-running vehicle: “Please can you mode Key for the 2006 4runner in Houston..Don’t you think it’s better than using forklift on the car..” (Respondent’s Exhibit #5, page 11). This explicitly contradicts Mr. Nussbaum’s baseless theory in this proposed finding of fact that MTL causes delays to accumulate storage, when it’s clear that MTL offered a way for such a non-running vehicle to be shipped and the Complainants themselves rejected it. Furthermore, MTL offered this service even

though the Complainants failed to follow MTL's instructions back in December of 2017, when Alla Solovyeva informed the Complainants: "The customer is responsible for the physical condition of the vehicle he purchased. When the customer is requesting the ro-ro service, he needs to notify if the vehicle is running or not, and what visual damages of the body." (Respondent's Exhibit #5, page 54).

181. Denied. See, for example, response to #179 above.
182. Denied. See, for example, response to #180 above.
183. Denied. See response to #179 and 180 above.
184. Denied. See, for example, Respondent's Exhibit #1, Respondent's Exhibit #5, page 58.
185. Denied. See Alla Solovyeva's Affidavit.
186. Denied. See response to #170 and 180 above.
187. This proposed fact mentions March of 2018 but it does not mention that back in December of 2017, MTL notified the Complainants that their vehicles are on hold for failure to pay outstanding invoices; however, irrespective of such, MTL continued to provide services. (Respondent's Exhibit #5, page 58).
188. Respondents incorporate their response exactly as it was provided, not Mr. Nussbaum's interpretation (Complainants' appendix "D", ¶3(c)).
189. Respondents incorporate their response exactly as it was provided, not Mr. Nussbaum's interpretation (Complainants' appendix "D", ¶4).
190. Denied. As illustrated above in #162, "cutting and dismantling" did not mean actual cutting of the vehicle but rather if there were loose parts, such as hanging bumper or mirror, those items must be adjusted.

191. Denied. See response to #190 and 180 above.
192. Denied. See Complainants' appendix at page 177, ¶11d.
193. Yes, however, Complainants rejected such. See response to #180 above.
194. Yes, Complainant, Mr. Chinedu.

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